

clauses. (Opposition, pp. 7:22-8:8.) On reply, Defendant argues that “these allegations are entirely conclusory and not based on allegations in the Complaint. Plaintiffs do not identify which specific contract provisions are unconscionable, why they are unconscionable, or how they affect consumers generally rather than just these Plaintiffs.” (Reply, p. 6:23-28.)

The Court agrees with Defendant that the allegations Plaintiffs assert support this claim (Opposition, pp. 7-8) are not actually pleaded in the Complaint. The allegations pled by Plaintiffs in the complaint are conclusory and not specific. For example, “Freedom Forever has engaged in unfair and unlawful business practices in the State of California.” (Complaint, ¶ 63.) “Freedom Forever’s business acts and practices, have caused substantial harm to California consumers, including Plaintiffs and members of the public by enforcing deceptive business acts and practices in companies engaged in contracting work on residential properties that will likely cause consumers to lose protection and the opportunity to fair competition in commercial markets for related goods and services.” (*Id.*, at ¶ 59.) Plaintiffs’ allegations in support of their UCL claim are insufficiently specific and overly conclusory. (*Khoury v. Maly’s of Cal.* (1993) 14 Cal.App.4th 612, 617 [“A plaintiff alleging unfair business practices [under the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation.”].)

Therefore, the Court grants Defendant’s motion for judgment on the pleadings as to Plaintiff’s fifth cause of action for violation of Business and Professions Code section 17200, et seq., with leave to amend.

Ruling on Motion

The Court **GRANTS** Defendant’s motion for judgment on the pleadings as to the second cause of action for financial elder abuse, the third cause of action for negligent misrepresentation, and the fifth cause of action for violation of Business & Professions Code section 17200 et seq., with leave to amend.

Plaintiffs may file and serve an amended complaint within 30 days of notice of entry of this order. (Code of Civ. Proc., § 438, subd. (h)(2).)

8. 9:00 AM CASE NUMBER: C24-02966

CASE NAME: YUE REN VS. GAUTAM PATIL

***HEARING ON MOTION IN RE:**

FILED BY: REN, YUE

TENTATIVE RULING:

Plaintiff has answered the Cross-Complaint. The **demurrer is now moot.**

9. 9:00 AM CASE NUMBER: C25-00311

CASE NAME: ERNISHA JOHNSON VS. HUNTER CURTIS CAMPBELL

***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**

FILED BY: BALLARD, TONY

TENTATIVE RULING:

Plaintiff Ernisha Johnson seeks leave to file an amended complaint against an additional defendant. The Court received no opposition.

The initial complaint was filed February 3, 2025, with a First Amended Complaint filed July 21, 2025. Current Defendant Hunter Curtis Campbell filed an Answer on September 9, 2025. Plaintiff asserts that “[t]hrough recent discovery, Plaintiff identified an additional individual and/or business entity directly involved in the motor-vehicle incident described in the complaint.” Pursuant to Code of Civil Procedure section 428.50(c), leave of the Court is required in this circumstance. There is no indication of bad faith and the Court does not see any prejudice. The lack of opposition does bolster both of those findings.

For the reasons stated above, the Motion is **granted**. Plaintiff must file the Second Amended Complaint within five days.

10. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

The demurrer filed by Nationstar Mortgage LLC d/b/a Rushmore Servicing and Deutsche Bank Trust Company Americas, as Trustee for Residential Accredited Loans, Inc., Mortgage Asset-Backed Pass-Through Certificates, Series 2006-QO4, joined by Mortgage Electronic Registration Systems, Inc., is moot.

Plaintiff filed and served a First Amended Complaint (FAC) on April 1, 2026, which supersedes the original pleading. (*People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506.) Under Code of Civil Procedure section 472, a plaintiff may amend once as of right after a demurrer is filed, provided the amended pleading is filed and served no later than the deadline for filing an opposition. The demurrer was originally calendared for April 8, 2026, continued to April 9, 2026, in anticipation of reassignment to Department 10, and further continued by Department 10 to April 23, 2026. In their Notice of Non-Opposition filed March 30, 2026, Defendants asserted that the operative opposition deadline was March 26, 2026, based on the April 9 hearing date. Even assuming that is correct, the Court would grant leave to amend in any event. Any ruling on the original pleading would therefore be an idle act.

11. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING IN RE: JOINDER TO DEMURRER

FILED BY:

TENTATIVE RULING:

See Line 10.